

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 20-027
Amendments to Title 2, Chapter 4, Article B, Section 2-426
of the Chickasaw Nation Code
(Legislative Department Salaries)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature finds that a need exists for the review of salaries paid elected officials of the Chickasaw Nation every four (4) years in accordance with Amendment IV, Section 1 of the Constitution of the Chickasaw Nation, and

WHEREAS, the Legislature also finds that the four (4) year periods began in 1983; therefore, the salaries paid elected officials of the Chickasaw Nation must be reviewed in Fiscal Year 2003.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 4, Article B, Section 2-426 of the Chickasaw Nation Code (additions and case changes are shown in red, deletions are stricken through). The effective date of the following amendments is October 1, 2003:

“SECTION 2-426 **LEGISLATIVE DEPARTMENT SALARIES.**

A. The base salary for all Tribal Legislators shall not include any travel allowances, but travel reimbursement expenses shall be in accordance with legislative travel policies. Tribal Legislators are entitled to a salary and allowances in accordance with Amendment IV of the Constitution of the Chickasaw Nation.

B. ~~The salary of the Legislators shall be the sum of three thousand five hundred dollars (\$3,500) per month, plus a three and one half percent (3.5%) increase to the salary for each year of service which has been completed as a Tribal Legislator under the Constitution of 1983. In addition, annually, the Chickasaw Nation shall contribute an amount equal to twenty five percent (25%) of the Legislator’s total annual salary to a retirement/investment plan, as directed by the Legislator.~~
~~Regular monthly salary for full-time Legislators shall be \$2,084.00, provided, however, that a Legislator may choose, by written notice to the Recording Secretary of the Legislature, to be paid on a scale that will be in keeping with the provisions or requirements of his/her retirement and/or Social Security income. Legislators shall be entitled to enroll in the retirement program of the Chickasaw Nation. Applicable taxes and other deductions from salary shall be in accordance with~~

tribal policy. ~~The Legislators that are chosen as Chairperson or Chairperson Pro Tempore and as Secretary or Secretary Pro Tempore of the Chickasaw Tribal Legislature, shall be entitled to receive an additional allowance. Those allowances are as follows:~~

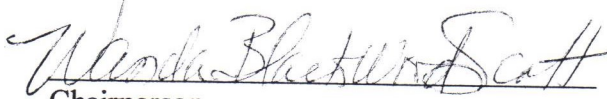
1. The Chairperson or the Chairperson Pro Tempore of the Tribal Legislature shall receive an additional five hundred dollars (\$500) ~~\$250.00~~ per month for the duration of the time in which he serves in that capacity.

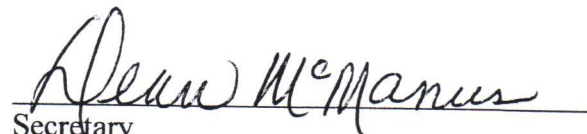
2. The Secretary or the Secretary Pro Tempore of the Tribal Legislature shall receive an additional two hundred dollars (\$200) ~~\$150.00~~ per month for the duration of the time in which he serves in that capacity;

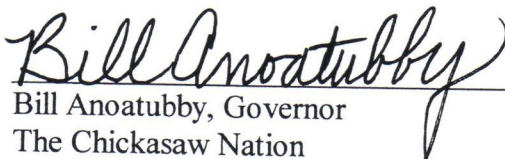
~~3. All Legislators shall receive a 3% cost of living allowance on October 1, 1997, and another 3% cost of living allowance on October 1, 1998.~~

C. RESERVED.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 19, 2003, by a vote of 7 ayes, 5 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 19 2003

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Explanation: The intent of this resolution is to establish starting salary levels for the elected officials of the Legislative Department, to keep those salaries competitive and reasonable by establishing a system of timely compensation increases and to reward long term commitments to public service.

Requested By: D. Scott Colbert, Chairman
Finance Committee

Presented By: Wanda Blackwood Scott, Chairperson